

DEPARTMENT OF VETERANS AFFAIRS

SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL
ITEMS IN ACCORDANCE WITH FAR 13.5

Acquisition Plan Action ID: 36C255-26-AP-1106

1. **Contracting Activity:** Network Contracting Office (NCO) 15, 3450 S. 4th Street Trafficway, Leavenworth, KS 66408 in support with the Department of Veterans Affairs (VA), Veterans Integrated Service Networks (VISN) 15 Facilities, in support of Harry S. Truman Memorial Veterans Hospital, 800 Hospital Drive, Columbia, MO 65201-5275

Purchase Request Number: 589-26-2-5686-0181

2. **Nature and/or Description of the Action Being Processed:** This procurement is for firm fixed price sole source justification for a base and four (4) 12-month option periods to Philips Healthcare for maintenance and service MR Elastography and Chiller Maintenance in accordance with FAR 13.5 Simplified Procedures for Certain Commercial Items and specifically FAR 13.501 Special Documentation Requirements, where acquisitions conducted under Simplified Acquisition Procedures are exempt from the requirements of FAR Part 6, but still require a justification using the format of FAR 6.303-2.
3. **Description of Supplies/Services Required to Meet the Agency's Needs:** The equipment to be maintained and serviced is the Philips Ingenia Ambition X 1.5T MRI, Serial Number [REDACTED] and KKT Chiller, [REDACTED], [REDACTED], [REDACTED]. This will be for a Base and four (4) 12-month option periods with a total estimated cost of [REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

4. **Statutory Authority Permitting Restricted Competition:**
FAR 13.5 Simplified Procedures for Certain Commercial Items. The statutory authority for applying the Simplified Procedures for Commercial Items of FAR 13.5 is 41 U.S.C. § 1901 and is implemented by FAR 13.106-1(b)(2) for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- (X) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements
- () Unusual and Compelling Urgency

- () Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services
- () International Agreement
- () Authorized or Required by Statute
- () National Security
- () Public Interest

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

*a. **Only One Responsible Source** – Due to the highly specialized and proprietary nature of the equipment, these products and services can only be supplied by the Original Equipment Manufacturer (OEM) and performed by Philips's certified technicians. Additionally, any software support or services conducted by a third-party vendor would void existing warranties and would not be supported by Philips Healthcare. If a non-authorized vendor is used, any resulting damage to the equipment will be the responsibility of the facility, and the manufacturer will not be held liable.*

Accordingly, Philips Healthcare, large business, is the only firm capable of providing the supplies and

[REDACTED]

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

[REDACTED]

Furthermore, due to the Sole Source letter that was provided from the OEM, Philips Healthcare, stating they are the only certified service providers for their equipment. Furthermore, an intent to Sole Source will be posted IAW FAR 5.101.

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:

A fair and reasonable price determination will be made by comparison to the Independent Government Cost Estimate that was formulated by using market research of historical pricing from same or similar scope contracts that have been determined fair and reasonable, and market price lists in conjunction with the pricing methods in accordance with FAR 13.106-3.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

Pursuant to [FAR Part 10](#) and [VAAR Part 810](#) market research was conducted via Small Business

[REDACTED]

This procurement is for services, therefore FAR 25.1 is not applicable to this procurement.

As described in Section 6 above, market research, in accordance with FAR Part 10, was conducted by synopsis of the proposed acquisition, advising industry of the pending acquisition and soliciting inquiries from interested parties.

9. Any Other Facts Supporting the Use of Other than Full and Open Competition: *None*

10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:



11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:

There will be continued surveillance to monitor the industry for new entrances to the market place. Furthermore, as the equipment nears the end of its life expectancy, the equipment team will reevaluate their facility's needs with the current industry capabilities and the VA's long term strategic planning to maximize competition to the extent practical.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

JACK FISHER
Digitally signed by JACK FISHER
Date: 2026.04.14 09:38:45 -05'00'

Jack Fisher
Supervisor – Biomedical Support Specialist
Columbia VAMC

13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

a. Contracting Officer or Designee's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

VERONICA
FLORES

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VERONICA FLORES
Date: 2026.04.13
11:51:45 -05'00'

Betty Flores
Contracting Officer
Network Contracting Office (NCO) 15

- b. One Level Above the Contracting Officer (Required over \$350K but not exceeding \$900K): I certify the justification meets requirements for other than full and open competition.

RANDALL COMBS

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COMBS
Date: 2026.04.14 12:06:46 -05'00'

Randall D. Combs
Supervisory Contract Specialist
Division Chief, Division II
Network Contracting Office (NCO) 15